

26VECV00267 26VECV00267

County: los-angeles

Division: Civil Law and Motion

Department: T

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26VECV00267 Sosa v Arbel

[TENTATIVE] ORDER: Defendant ADB Group Inc.'s Motion to Transfer Venue is DENIED.

Introduction

Defendant ADB Group Inc. (Defendant) moved to transfer the venue of Plaintiff Jacob Thomas Sosa's (Plaintiff) Complaint to Ventura County.

[Note: there is a typo in the motion. Defendant cited to "Hennigan v. Boren (1966) 243 Cal.App.3d 810". (Mtn. pg. 3:21.) However, the correct citation is "Cal.App.2d". Please be careful so that the court will not need to investigate whether AI was used.]

Discussion

Defendant asserted that the action should be transferred to Ventura County because of the convenience of witnesses and the ends of justice would be promoted. Defendant provided that all parties to this action, except for Defendant, a Los Angeles County resident, reside in Ventura County, and the accident occurred in Ventura County. For the fact that Defendant admittedly resides in Los Angeles County, the action is properly venued in this Court.

Even if filed in a proper county, on appropriate motion, the court has discretionary power to transfer the case to any other county "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change." (Code Civ. Proc. Sec. 397(c); Rycz v. Superior Court (2022) 81 Cal.App.5th 824, 836.) However, the Court only considers the convenience of nonparty witnesses. Absent extraordinary circumstances, the parties' conveniences are not considered. (Dillman v. Superior Court (1962) 205 Cal.App.2d 769, 773.) Further, the moving party has the burden to show three elements: the names of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient. (Id.) Defendant's motion is only based upon the parties' convenience and failed to identify any nonparty witnesses that would be inconvenienced. Further, Defendant failed to present any extraordinary circumstances. Because the motion failed to identify the convenience/inconvenience of any nonparty witnesses to support the motion, the motion is not persuasive.

Defendant further argued that Plaintiff is reneging on their prior agreement to transfer the action. However, Counsels' prior agreement is not a statutory ground to transfer venue.

The fact that Defendant filed their Answer only provides grounds to allow the Court to entertain the motion for change of venue on the ground of witness convenience. (Johnson v. Superior Court (1965) 232 Cal.App.2d 212, 214.) The opinion does not state that the Court is required to transfer the action because Defendant filed an answer. Filing of an answer only provides grounds to show that the motion is appropriately filed. The Court does not dispute that the motion was appropriately filed. The Court considered the appropriately filed motion and did not find the substance of the motion to be persuasive.

The motion to transfer venue is DENIED.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.